COMMERCIAL AGREEMENT - RECORD 019

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-019

1. Recitals and defined terms

This Component Supply Agreement is made between Helioscope Robotics, Inc. as Provider and Summit Battery Works Inc. as Supplier, a battery packs business organised in Nevada, contracting through Summit Battery Works Inc.. Summit and the Provider have agreed that terms defined in the recitals and in Exhibit B carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

On the terms of Exhibit D, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Per the amendment history, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Summit's 1 site, since a battery packs operator administers the Component Supply Agreement where the units work. The Summit file records the position as at the last amendment, and Article 10 (Change Control) is the reference a reviewer should cite when raising it.

Read with Exhibit A, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In application, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Summit treats the obligation as a site-level matter across its 1 site in Nevada, consistent with the Component Supply Agreement. Administration of this obligation for Summit sits with the account team rather than with central contracts, and Article 4 (Orders and Quantities) is where it is evidenced.

Article 13 (Licences) of the Component Supply Agreement is to be construed so that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Negotiated position: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 1 site in Nevada means Summit applies the Component Supply Agreement through its regional operations team rather than through head office. Nothing in the Summit negotiation history qualifies Article 17 (Transition Assistance), and a reviewer should not read the pre-signature drafts as doing so.

Summit Battery Works Inc. is entitled to require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Deliberately so: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Nevada is where Summit runs battery packs operations across 1 site, and the Component Supply Agreement follows that footprint. For a supplier of Summit's size the clause is unremarkable, but Article 6 (Fees and Payment) is drafted more tightly here than in the Provider's standard form.

Summit supply agreement - Schedule 2 - Sites and Operating Patterns

Summit site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
SUM-S001	Fathom facility	31	2026-11-10	single shift	Provider furnished	not commenced
SUM-S002	Dunbar facility	6	2025-08-23	two shifts	Provider furnished	not commenced
SUM-S003	Dunbar facility	10	2024-05-10	single shift	Customer furnished	pending acceptance
SUM-S004	Crestline facility	12	2025-05-04	continuous	Provider furnished	accepted with punch list
SUM-S005	Harborline facility	22	2024-07-18	two shifts	shared	not commenced
SUM-S006	Fathom facility	15	2026-06-24	single shift	Provider furnished	not commenced
SUM-S007	Harborline facility	22	2025-01-03	single shift	shared	pending acceptance
SUM-S008	Keystone facility	23	2024-04-03	two shifts	Provider furnished	not commenced
SUM-S009	Keystone facility	23	2026-06-09	single shift	Provider furnished	pending acceptance

Summit site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
SUM-S010	Keystone facility	15	2026-01-18	two shifts	Customer furnished	accepted
SUM-S011	Mesa facility	15	2026-05-10	two shifts	Customer furnished	accepted
SUM-S012	Larkspur facility	31	2025-03-10	single shift	Provider furnished	accepted with punch list
SUM-S013	Meridian facility	13	2025-09-06	continuous	Customer furnished	pending acceptance
SUM-S014	Dayton facility	33	2024-09-21	two shifts	Customer furnished	accepted with punch list
SUM-S015	Dayton facility	34	2026-06-13	single shift	Provider furnished	pending acceptance
SUM-S016	Harborline facility	25	2025-11-27	single shift	Provider furnished	accepted with punch list
SUM-S017	Harborline facility	38	2025-01-17	continuous	Provider furnished	not commenced
SUM-S018	Evergreen facility	19	2024-08-28	single shift	Customer furnished	accepted with punch list
SUM-S019	Fathom facility	11	2026-08-16	continuous	Customer furnished	pending acceptance
SUM-S020	Dunbar facility	5	2026-12-18	single shift	shared	not commenced
SUM-S021	Dunbar facility	26	2026-06-05	two shifts	Customer furnished	accepted
SUM-S022	Evergreen facility	33	2025-04-04	continuous	Customer furnished	pending acceptance
SUM-S023	Dunbar facility	38	2026-09-03	continuous	Customer furnished	accepted with punch list
SUM-S024	Granite facility	26	2024-10-14	continuous	shared	accepted with punch list
SUM-S025	Meridian facility	25	2024-06-28	single shift	shared	not commenced
SUM-S026	Juniper facility	9	2026-02-01	two shifts	Provider furnished	not commenced
SUM-S027	Fathom facility	28	2024-02-20	continuous	Provider furnished	pending acceptance
SUM-S028	Larkspur facility	4	2026-12-03	two shifts	shared	pending acceptance
SUM-S029	Crestline facility	31	2024-01-21	single shift	shared	accepted with punch list
SUM-S030	Meridian facility	29	2025-11-08	continuous	Customer furnished	accepted with punch list
SUM-S031	Juniper facility	14	2025-10-04	continuous	shared	accepted
SUM-S032	Evergreen facility	5	2025-12-22	two shifts	Provider furnished	pending acceptance
SUM-S033	Mesa facility	32	2024-10-08	continuous	Provider furnished	not commenced
SUM-S034	Evergreen facility	13	2024-11-21	two shifts	Provider furnished	not commenced
SUM-S035	Dunbar facility	27	2024-12-08	single shift	shared	accepted
SUM-S036	Mesa facility	22	2024-11-14	continuous	Provider furnished	accepted with punch list
SUM-S037	Harborline facility	17	2026-01-04	continuous	Provider furnished	accepted
SUM-S038	Fathom facility	32	2025-05-05	continuous	Customer furnished	not commenced
SUM-S039	Keystone facility	19	2025-06-22	two shifts	Provider furnished	accepted with punch list
SUM-S040	Keystone facility	23	2024-11-04	continuous	shared	pending acceptance
SUM-S041	Dunbar facility	16	2024-11-24	continuous	Provider furnished	accepted with punch list
SUM-S042	Larkspur facility	26	2025-01-13	single shift	Provider furnished	accepted
SUM-S043	Crestline facility	26	2024-08-11	continuous	Customer furnished	accepted with punch list
SUM-S044	Keystone facility	25	2025-09-04	two shifts	Provider furnished	accepted
SUM-S045	Fathom facility	38	2024-01-09	continuous	Customer furnished	not commenced
SUM-S046	Meridian facility	28	2025-05-12	continuous	Provider	accepted with

Summit site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	punch list
SUM-S047	Meridian facility	11	2024-12-06	two shifts	Provider furnished	accepted
SUM-S048	Fathom facility	5	2024-07-06	continuous	shared	not commenced
SUM-S049	Crestline facility	18	2024-05-13	single shift	Customer furnished	pending acceptance
SUM-S050	Dayton facility	20	2026-08-18	two shifts	Provider furnished	accepted
SUM-S051	Harborline facility	30	2025-08-14	two shifts	Customer furnished	pending acceptance
SUM-S052	Dunbar facility	21	2024-05-20	two shifts	shared	accepted with punch list
SUM-S053	Meridian facility	5	2026-02-14	single shift	Customer furnished	pending acceptance
SUM-S054	Dayton facility	10	2024-04-27	continuous	Customer furnished	not commenced
SUM-S055	Dunbar facility	24	2026-03-10	continuous	shared	not commenced
SUM-S056	Meridian facility	34	2025-10-18	two shifts	shared	pending acceptance
SUM-S057	Juniper facility	18	2024-08-20	continuous	shared	not commenced
SUM-S058	Granite facility	31	2026-06-12	two shifts	shared	accepted
SUM-S059	Granite facility	15	2026-09-19	single shift	shared	accepted
SUM-S060	Dayton facility	16	2026-05-26	single shift	shared	accepted with punch list
SUM-S061	Meridian facility	7	2026-12-05	two shifts	Customer furnished	accepted with punch list
SUM-S062	Keystone facility	17	2024-06-19	single shift	Customer furnished	pending acceptance
SUM-S063	Meridian facility	19	2025-06-11	continuous	Provider furnished	not commenced
SUM-S064	Dayton facility	18	2026-07-16	single shift	Provider furnished	accepted
SUM-S065	Meridian facility	29	2024-09-11	two shifts	Customer furnished	accepted with punch list
SUM-S066	Granite facility	13	2024-03-22	continuous	Provider furnished	accepted with punch list
SUM-S067	Juniper facility	16	2026-09-19	continuous	Customer furnished	accepted
SUM-S068	Granite facility	9	2025-07-04	continuous	Provider furnished	pending acceptance
SUM-S069	Fathom facility	29	2026-12-08	single shift	Customer furnished	accepted
SUM-S070	Dunbar facility	28	2026-06-05	single shift	Provider furnished	pending acceptance
SUM-S071	Larkspur facility	7	2026-08-12	single shift	Customer furnished	accepted
SUM-S072	Granite facility	28	2026-11-08	two shifts	shared	accepted
SUM-S073	Keystone facility	33	2024-07-03	two shifts	Provider furnished	accepted
SUM-S074	Granite facility	22	2025-08-02	continuous	shared	accepted
SUM-S075	Mesa facility	37	2024-06-07	single shift	Provider furnished	pending acceptance
SUM-S076	Mesa facility	15	2025-12-04	single shift	Provider furnished	pending acceptance
SUM-S077	Mesa facility	5	2026-02-26	single shift	shared	not commenced
SUM-S078	Keystone facility	33	2026-08-04	single shift	shared	not commenced
SUM-S079	Granite facility	18	2025-01-07	continuous	Provider furnished	not commenced
SUM-S080	Meridian facility	39	2025-02-06	two shifts	Customer furnished	accepted
SUM-S081	Keystone facility	14	2025-04-20	single shift	Customer furnished	not commenced
SUM-S082	Juniper facility	39	2025-06-04	continuous	shared	accepted
SUM-S083	Evergreen facility	13	2024-03-14	two shifts	Provider furnished	accepted with punch list
SUM-S084	Dayton facility	35	2025-03-25	two shifts	Customer furnished	accepted with punch list

2. Scope of supply and orders

Summit Battery Works Inc. undertakes that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On this point, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Nevada is where Summit runs battery packs operations across 1 site, and the Component Supply Agreement follows that footprint. Because Summit operates in battery packs, the practical burden of this clause falls on its Nevada operation, and Article 4 (Orders and Quantities) governs how it is measured.

Subject to Article 11 (Data and Telemetry), the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. By design, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Component Supply Agreement reaches each of Summit's 1 site separately, which is how a battery packs operator in Nevada administers it. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Summit affiliate that may operate a site.

Article 10 (Change Control) provides that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. On timing, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. In battery packs the burden of this sits with operations, and Summit discharges it across 1 site under the Component Supply Agreement. Where Summit has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

The Provider has undertaken to Summit that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As drafted, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Component Supply Agreement reaches each of Summit's 1 site separately, which is how a battery packs operator in Nevada administers it. For a supplier of Summit's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

3. Delivery, title and risk

Read with Schedule 3, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the mechanics, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Summit is a Nevada battery packs business with 1 site, the Component Supply Agreement devolves this to the site manager. Notices under Article 18 (Assignment) go to the contracting entity named in the recital and not to any Summit affiliate that may operate a site.

Nothing in Schedule 3 entitles Summit to assume that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As a matter of construction, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Component Supply Agreement reaches each of Summit's 1 site separately, which is how a battery packs operator in Nevada administers it. The Summit file records the position as at the last amendment, and Article 16 (Term and Termination) is the reference a reviewer should cite when raising it.

The parties have recorded in Exhibit C that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Tighter here than standard: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Summit, a battery packs operator running 1 site out of Nevada, the point matters because the Component Supply Agreement is administered site by site. The Summit relationship is managed against Article 14 (Indemnities) at each quarterly review, and any variance is minuted there rather than in the Order.

Summit Battery Works Inc. undertakes that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. In terms of consequence, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. For Summit, a battery packs operator running 1 site out of Nevada, the point matters because the Component Supply

Agreement is administered site by site. Notices under Article 17 (Transition Assistance) go to the contracting entity named in the recital and not to any Summit affiliate that may operate a site.

Summit supply agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Summit milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
SUM-M001	warranty commencement	2024-02	23	network provisioning	$270,808	invoiceable on acceptance
SUM-M002	site survey complete	2024-01	10	facility readiness	$206,599	invoiceable on certification
SUM-M003	integration test passed	2025-03	27	facility readiness	$145,322	no payment attached
SUM-M004	warranty commencement	2024-09	17	labour agreement	$29,915	no payment attached
SUM-M005	pilot acceptance	2025-06	30	Customer IT dependency	$177,386	no payment attached
SUM-M006	full acceptance	2026-10	30	seasonal freeze	$211,996	invoiceable on acceptance
SUM-M007	units delivered	2025-07	16	seasonal freeze	$63,362	invoiceable on certification
SUM-M008	warranty commencement	2024-02	14	facility readiness	$227,351	no payment attached
SUM-M009	units delivered	2024-01	32	no delay	$250,274	invoiceable on certification
SUM-M010	integration test passed	2025-12	30	labour agreement	$148,761	invoiceable on certification
SUM-M011	integration test passed	2026-08	2	Customer IT dependency	$18,755	invoiceable on acceptance
SUM-M012	units delivered	2024-01	27	network provisioning	$214,436	invoiceable on acceptance
SUM-M013	steady-state handover	2025-03	27	network provisioning	$33,183	invoiceable on acceptance
SUM-M014	steady-state handover	2025-07	2	network provisioning	$90,441	no payment attached
SUM-M015	site survey complete	2024-03	28	network provisioning	$147,904	invoiceable on acceptance
SUM-M016	warranty commencement	2024-08	4	labour agreement	$40,716	no payment attached
SUM-M017	site survey complete	2025-08	10	network provisioning	$232,630	invoiceable on acceptance
SUM-M018	integration test passed	2024-10	26	labour agreement	$132,467	no payment attached
SUM-M019	full acceptance	2025-10	8	Customer IT dependency	$209,354	no payment attached
SUM-M020	full acceptance	2026-12	3	seasonal freeze	$241,151	no payment attached
SUM-M021	network readiness certified	2024-03	14	Customer IT dependency	$71,880	invoiceable on certification
SUM-M022	integration test passed	2024-05	8	labour agreement	$107,065	invoiceable on certification
SUM-M023	full acceptance	2026-01	9	no delay	$28,074	no payment attached
SUM-M024	network readiness certified	2024-10	14	facility readiness	$87,603	no payment attached
SUM-M025	pilot acceptance	2025-03	14	facility readiness	$207,872	invoiceable on acceptance
SUM-M026	site survey complete	2024-09	2	facility readiness	$271,632	invoiceable on certification
SUM-M027	network readiness certified	2024-01	25	Customer IT dependency	$114,866	no payment attached
SUM-M028	units delivered	2026-01	on plan	Customer IT dependency	$62,905	no payment attached
SUM-M029	steady-state handover	2026-05	30	seasonal freeze	$157,484	invoiceable on acceptance
SUM-M030	integration test passed	2026-11	3	Customer IT dependency	$147,052	invoiceable on acceptance
SUM-M031	integration test passed	2025-07	17	seasonal freeze	$26,615	invoiceable on acceptance
SUM-M032	warranty	2026-02	2	seasonal freeze	$33,575	invoiceable on

Summit milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement					certification
SUM-M033	integration test passed	2025-08	4	seasonal freeze	$84,430	invoiceable on acceptance
SUM-M034	integration test passed	2025-08	16	labour agreement	$173,461	invoiceable on acceptance
SUM-M035	warranty commencement	2025-08	14	facility readiness	$209,013	invoiceable on acceptance
SUM-M036	steady-state handover	2024-10	21	network provisioning	$51,961	no payment attached
SUM-M037	full acceptance	2025-06	1	facility readiness	$186,502	invoiceable on certification
SUM-M038	units delivered	2026-08	19	no delay	$247,910	invoiceable on acceptance
SUM-M039	warranty commencement	2026-05	11	Customer IT dependency	$99,161	invoiceable on certification
SUM-M040	full acceptance	2024-11	16	Customer IT dependency	$87,264	invoiceable on certification
SUM-M041	site survey complete	2024-12	14	facility readiness	$60,779	no payment attached
SUM-M042	warranty commencement	2026-07	9	Customer IT dependency	$243,133	invoiceable on certification
SUM-M043	units delivered	2026-09	27	labour agreement	$204,973	invoiceable on acceptance
SUM-M044	integration test passed	2025-03	15	network provisioning	$14,214	invoiceable on acceptance
SUM-M045	integration test passed	2026-08	2	facility readiness	$32,644	invoiceable on certification
SUM-M046	integration test passed	2025-01	25	no delay	$149,187	no payment attached
SUM-M047	pilot acceptance	2024-11	18	network provisioning	$81,175	invoiceable on acceptance
SUM-M048	site survey complete	2024-08	30	labour agreement	$49,940	no payment attached
SUM-M049	network readiness certified	2026-01	26	Customer IT dependency	$87,760	invoiceable on certification
SUM-M050	integration test passed	2026-12	11	no delay	$140,518	invoiceable on acceptance
SUM-M051	full acceptance	2024-08	13	network provisioning	$51,689	invoiceable on acceptance
SUM-M052	integration test passed	2025-02	19	network provisioning	$77,618	no payment attached
SUM-M053	full acceptance	2024-08	13	network provisioning	$226,374	no payment attached
SUM-M054	warranty commencement	2025-01	20	facility readiness	$230,882	invoiceable on acceptance
SUM-M055	site survey complete	2026-06	6	Customer IT dependency	$54,644	invoiceable on acceptance
SUM-M056	network readiness certified	2025-05	26	network provisioning	$116,415	invoiceable on acceptance
SUM-M057	site survey complete	2025-04	12	facility readiness	$162,993	invoiceable on acceptance
SUM-M058	full acceptance	2024-08	7	facility readiness	$74,008	invoiceable on acceptance
SUM-M059	warranty commencement	2024-04	29	network provisioning	$261,633	invoiceable on certification
SUM-M060	warranty commencement	2026-10	2	seasonal freeze	$132,249	no payment attached
SUM-M061	steady-state handover	2024-03	3	Customer IT dependency	$56,923	invoiceable on certification
SUM-M062	warranty commencement	2024-11	2	Customer IT dependency	$186,515	no payment attached
SUM-M063	network readiness certified	2024-06	18	Customer IT dependency	$70,505	no payment attached
SUM-M064	integration test passed	2026-08	19	Customer IT dependency	$125,374	no payment attached
SUM-M065	pilot acceptance	2024-09	28	network provisioning	$28,691	invoiceable on acceptance
SUM-M066	network readiness	2026-10	6	facility readiness	$129,745	invoiceable on

Summit milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	certified					acceptance
SUM-M067	full acceptance	2026-12	27	no delay	$62,871	invoiceable on certification
SUM-M068	units delivered	2024-11	24	network provisioning	$83,655	invoiceable on certification
SUM-M069	warranty commencement	2026-03	13	seasonal freeze	$188,526	no payment attached
SUM-M070	integration test passed	2025-11	8	labour agreement	$52,967	no payment attached
SUM-M071	network readiness certified	2024-06	5	seasonal freeze	$184,294	no payment attached
SUM-M072	network readiness certified	2024-01	19	seasonal freeze	$242,135	invoiceable on acceptance
SUM-M073	pilot acceptance	2025-01	21	Customer IT dependency	$21,109	invoiceable on acceptance
SUM-M074	network readiness certified	2026-01	6	facility readiness	$266,774	invoiceable on acceptance
SUM-M075	integration test passed	2026-08	1	seasonal freeze	$150,890	invoiceable on certification
SUM-M076	pilot acceptance	2025-08	32	labour agreement	$264,374	invoiceable on certification
SUM-M077	network readiness certified	2024-09	23	network provisioning	$219,836	invoiceable on acceptance
SUM-M078	full acceptance	2024-08	19	seasonal freeze	$112,499	invoiceable on acceptance
SUM-M079	integration test passed	2026-10	24	no delay	$92,221	no payment attached
SUM-M080	steady-state handover	2025-07	19	facility readiness	$85,396	invoiceable on acceptance
SUM-M081	pilot acceptance	2026-12	27	no delay	$136,657	no payment attached
SUM-M082	integration test passed	2024-12	2	Customer IT dependency	$253,285	invoiceable on acceptance
SUM-M083	full acceptance	2025-02	33	network provisioning	$128,282	invoiceable on certification
SUM-M084	pilot acceptance	2026-01	33	facility readiness	$168,252	invoiceable on acceptance
SUM-M085	network readiness certified	2024-10	23	no delay	$210,302	invoiceable on certification
SUM-M086	network readiness certified	2025-01	9	Customer IT dependency	$49,555	no payment attached

4. Fees, invoicing and escalation

Summit and the Provider agree that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. On the mechanics, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Summit's 1 site, since a battery packs operator administers the Component Supply Agreement where the units work. The obligation as it applies to Summit was tightened at signature, and Article 21 (Governing Law and Disputes) carries the negotiated wording rather than the standard wording.

As between Summit and the Provider, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In substance, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Summit's 1 site, since a battery packs operator administers the Component Supply Agreement where the units work. Administration of this obligation for Summit sits with the account team rather than with central contracts, and Article 12 (Intellectual Property) is where it is evidenced.

As between Summit and the Provider, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. As agreed, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. In battery packs the burden of this sits with operations, and Summit discharges it across 1 site under the

Component Supply Agreement. The Summit file records the position as at the last amendment, and Article 21 (Governing Law and Disputes) is the reference a reviewer should cite when raising it.

Summit Battery Works Inc. undertakes that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On the face of the clause, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. The Component Supply Agreement reaches each of Summit's 1 site separately, which is how a battery packs operator in Nevada administers it. Administration of this obligation for Summit sits with the account team rather than with central contracts, and Article 16 (Term and Termination) is where it is evidenced.

5. Service levels and credits

Summit Battery Works Inc. undertakes that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Negotiated position: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Operating 1 site, Summit applies the Component Supply Agreement at the point of delivery, as battery packs practice requires. For a supplier of Summit's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

Summit retains the right, notwithstanding Article 17 (Transition Assistance), to require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Practically, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Summit's 1 site, since a battery packs operator administers the Component Supply Agreement where the units work. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Summit affiliate that may operate a site.

On a proper construction of Exhibit C, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. By design, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Nevada is where Summit runs battery packs operations across 1 site, and the Component Supply Agreement follows that footprint. The obligation as it applies to Summit was tightened at signature, and Article 17 (Transition Assistance) carries the negotiated wording rather than the standard wording.

The Provider warrants to Summit that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Strictly, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. For Summit, a battery packs operator running 1 site out of Nevada, the point matters because the Component Supply Agreement is administered site by site. The Summit relationship is managed against Article 21 (Governing Law and Disputes) at each quarterly review, and any variance is minuted there rather than in the Order.

6. Acceptance and change control

Read with Exhibit A, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Materially, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Summit treats the obligation as a site-level matter across its 1 site in Nevada, consistent with the Component Supply Agreement. The obligation as it applies to Summit was tightened at signature, and Article 9 (Customer Obligations) carries the negotiated wording rather than the standard wording.

The parties have recorded in Exhibit D that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On the operative wording, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Summit is a Nevada battery packs business with 1 site, the Component Supply Agreement devolves this to the site manager. Summit has taken the point up once since signature; the correspondence is filed against Article 14 (Indemnities) and did not result in an amendment.

Summit may require that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Deliberately so: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Summit has 1 site, and the Component Supply Agreement treats each as a separate delivery point. Nothing in the Summit negotiation history qualifies Article 18 (Assignment), and a reviewer should not read the pre-signature drafts as doing so.

Summit Battery Works Inc. is entitled to require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As it bites, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Summit is a Nevada battery packs business with 1 site, the Component Supply Agreement devolves this to the site manager. The Summit relationship is managed against Article 19 (Confidentiality) at each quarterly review, and any variance is minuted there rather than in the Order.

Summit supply agreement - Exhibit C - Service Levels and Credit Ladder

Summit service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
SUM-L001	throughput	93.2%	6% of monthly fee	8% of monthly fee	excluding scheduled maintenance	credit only
SUM-L002	availability	92.3%	5% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
SUM-L003	response time	93.0%	12% of monthly fee	30% of monthly fee	no exclusion	credit then termination right
SUM-L004	availability	96.0%	6% of monthly fee	11% of monthly fee	excluding scheduled maintenance	credit only
SUM-L005	resolution time	91.0%	3% of monthly fee	10% of monthly fee	excluding force majeure	credit then termination right
SUM-L006	response time	94.8%	1% of monthly fee	16% of monthly fee	excluding force majeure	credit only
SUM-L007	availability	97.3%	11% of monthly fee	12% of monthly fee	excluding force majeure	credit only
SUM-L008	resolution time	96.8%	2% of monthly fee	10% of monthly fee	excluding force majeure	credit then termination right
SUM-L009	availability	93.6%	1% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit only
SUM-L010	resolution time	95.4%	4% of monthly fee	30% of monthly fee	no exclusion	credit only
SUM-L011	resolution time	92.0%	11% of monthly fee	29% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L012	resolution time	96.7%	7% of monthly fee	8% of monthly fee	no exclusion	credit only
SUM-L013	availability	93.0%	12% of monthly fee	21% of monthly fee	excluding force majeure	credit then termination right
SUM-L014	availability	97.4%	2% of monthly fee	30% of monthly fee	excluding force majeure	credit only
SUM-L015	availability	98.6%	8% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
SUM-L016	response time	98.1%	1% of monthly fee	13% of monthly fee	no exclusion	credit only
SUM-L017	availability	93.0%	12% of monthly fee	11% of monthly fee	no exclusion	credit then termination right
SUM-L018	throughput	96.8%	11% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L019	resolution time	97.8%	4% of monthly fee	28% of monthly fee	no exclusion	credit only
SUM-L020	throughput	94.5%	2% of monthly fee	20% of monthly fee	no exclusion	credit only
SUM-L021	throughput	97.5%	6% of monthly fee	30% of monthly fee	no exclusion	credit only
SUM-L022	response time	95.9%	8% of monthly fee	18% of monthly fee	excluding Customer-caused	credit only

Summit service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					outage	
SUM-L023	response time	91.0%	3% of monthly fee	29% of monthly fee	no exclusion	credit then termination right
SUM-L024	response time	91.5%	10% of monthly fee	11% of monthly fee	excluding scheduled maintenance	credit only
SUM-L025	resolution time	94.2%	6% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L026	availability	98.4%	6% of monthly fee	5% of monthly fee	excluding force majeure	credit then termination right
SUM-L027	response time	92.1%	1% of monthly fee	26% of monthly fee	excluding force majeure	credit then termination right
SUM-L028	resolution time	91.5%	3% of monthly fee	22% of monthly fee	no exclusion	credit only
SUM-L029	throughput	91.2%	12% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit only
SUM-L030	resolution time	96.5%	12% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
SUM-L031	availability	95.8%	7% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit only
SUM-L032	response time	90.2%	7% of monthly fee	7% of monthly fee	excluding force majeure	credit then termination right
SUM-L033	response time	97.5%	12% of monthly fee	9% of monthly fee	excluding force majeure	credit only
SUM-L034	resolution time	94.3%	9% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit only
SUM-L035	throughput	91.1%	6% of monthly fee	26% of monthly fee	excluding force majeure	credit then termination right
SUM-L036	availability	92.1%	4% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit only
SUM-L037	throughput	95.7%	7% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L038	availability	93.5%	2% of monthly fee	24% of monthly fee	no exclusion	credit then termination right
SUM-L039	response time	94.8%	6% of monthly fee	27% of monthly fee	no exclusion	credit only
SUM-L040	response time	90.4%	6% of monthly fee	8% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L041	availability	91.9%	7% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
SUM-L042	resolution time	97.8%	11% of monthly fee	26% of monthly fee	no exclusion	credit only
SUM-L043	throughput	98.0%	4% of monthly fee	6% of monthly fee	excluding force majeure	credit then termination right
SUM-L044	throughput	96.6%	11% of monthly fee	25% of monthly fee	excluding force majeure	credit only
SUM-L045	resolution time	97.7%	6% of monthly fee	29% of monthly fee	excluding force majeure	credit then termination right
SUM-L046	availability	92.1%	6% of monthly fee	10% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L047	response time	92.4%	11% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L048	throughput	90.3%	7% of monthly fee	14% of monthly fee	no exclusion	credit then termination right
SUM-L049	response time	96.9%	8% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
SUM-L050	resolution time	91.0%	1% of monthly	24% of monthly	excluding	credit only

Summit service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
SUM-L051	response time	92.6%	3% of monthly fee	17% of monthly fee	excluding force majeure	credit only
SUM-L052	resolution time	92.2%	10% of monthly fee	11% of monthly fee	no exclusion	credit only
SUM-L053	response time	93.5%	1% of monthly fee	8% of monthly fee	no exclusion	credit only
SUM-L054	throughput	95.1%	1% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L055	response time	93.6%	5% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L056	throughput	90.6%	7% of monthly fee	19% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L057	resolution time	98.7%	1% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L058	resolution time	90.5%	8% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L059	availability	92.9%	5% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L060	response time	94.9%	4% of monthly fee	11% of monthly fee	excluding force majeure	credit only
SUM-L061	response time	94.5%	6% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L062	throughput	96.2%	10% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L063	throughput	95.6%	11% of monthly fee	18% of monthly fee	excluding force majeure	credit only
SUM-L064	throughput	97.6%	9% of monthly fee	5% of monthly fee	excluding force majeure	credit only
SUM-L065	resolution time	95.3%	8% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L066	throughput	92.1%	8% of monthly fee	15% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L067	response time	91.2%	2% of monthly fee	17% of monthly fee	no exclusion	credit only
SUM-L068	availability	97.6%	12% of monthly fee	19% of monthly fee	excluding force majeure	credit then termination right
SUM-L069	throughput	98.8%	7% of monthly fee	28% of monthly fee	excluding force majeure	credit only
SUM-L070	response time	95.3%	9% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit only
SUM-L071	response time	97.7%	9% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit only
SUM-L072	resolution time	91.7%	8% of monthly fee	13% of monthly fee	no exclusion	credit only
SUM-L073	response time	92.6%	8% of monthly fee	27% of monthly fee	no exclusion	credit then termination right
SUM-L074	availability	96.3%	6% of monthly fee	21% of monthly fee	excluding force majeure	credit only
SUM-L075	response time	92.4%	7% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit then termination right
SUM-L076	throughput	96.8%	1% of monthly fee	28% of monthly fee	excluding scheduled maintenance	credit then termination right
SUM-L077	resolution time	98.0%	9% of monthly	25% of monthly	excluding	credit only

Summit service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	Customer-caused outage	
SUM-L078	throughput	97.0%	6% of monthly fee	26% of monthly fee	excluding force majeure	credit only
SUM-L079	availability	96.4%	3% of monthly fee	6% of monthly fee	no exclusion	credit only
SUM-L080	availability	96.5%	4% of monthly fee	15% of monthly fee	no exclusion	credit only

7. Data, intellectual property and licences

Summit pays the fees under Exhibit D in consideration of the Provider's undertaking that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. In point of remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. For Summit, a battery packs operator running 1 site out of Nevada, the point matters because the Component Supply Agreement is administered site by site. Because Summit operates in battery packs, the practical burden of this clause falls on its Nevada operation, and Article 8 (Acceptance) governs how it is measured.

Summit has agreed, and the Provider has accepted, that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. By design, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Summit's 1 site, since a battery packs operator administers the Component Supply Agreement where the units work. Because Summit operates in battery packs, the practical burden of this clause falls on its Nevada operation, and Article 17 (Transition Assistance) governs how it is measured.

Summit has agreed, and the Provider has accepted, that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As drafted, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Site count matters here: Summit has 1 site, and the Component Supply Agreement treats each as a separate delivery point. Summit has taken the point up once since signature; the correspondence is filed against Article 5 (Delivery and Title) and did not result in an amendment.

Summit pays the fees under Schedule 5 in consideration of the Provider's undertaking that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On the mechanics, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Summit treats the obligation as a site-level matter across its 1 site in Nevada, consistent with the Component Supply Agreement. Administration of this obligation for Summit sits with the account team rather than with central contracts, and Article 5 (Delivery and Title) is where it is evidenced.

8. Indemnities and limitation of liability

The parties have recorded in Schedule 2 that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the face of the clause, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In battery packs the burden of this sits with operations, and Summit discharges it across 1 site under the Component Supply Agreement. The obligation as it applies to Summit was tightened at signature, and Article 11 (Data and Telemetry) carries the negotiated wording rather than the standard wording.

Summit acknowledges that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On this point, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Component Supply Agreement reaches each of Summit's 1 site separately, which is how a battery packs operator in Nevada administers it. The Summit relationship is managed against Article 11 (Data and Telemetry) at each quarterly review, and any variance is minuted there rather than in the Order.

Nothing in Exhibit C entitles Summit to assume that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the operative wording, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 1 site, Summit applies the Component Supply Agreement at the point of delivery, as battery packs practice requires. Where Summit has raised a query the Provider has answered by reference to Article 8 (Acceptance), and the exchange is on the contract file.

Under Article 10 (Change Control) of the Component Supply Agreement, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In point of remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Nevada is where Summit runs battery packs operations across 1 site, and the Component Supply Agreement follows that footprint. The Summit relationship is managed against Article 16 (Term and Termination) at each quarterly review, and any variance is minuted there rather than in the Order.

Summit supply agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Summit price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
SUM-P0001	part 2383-G	harness	$738	14	200	single source	no EOL commitment
SUM-P0002	part 8267-F	harness	$1,491	4	50	qualification in progress	last-time-buy notice 12 months
SUM-P0003	part 4434-T	gearbox	$2,286	14	100	qualification in progress	last-time-buy notice 12 months
SUM-P0004	part 2015-S	harness	$531	14	300	dual sourced	last-time-buy notice 12 months
SUM-P0005	part 1029-F	controller board	$1,006	4	500	qualification in progress	no EOL commitment
SUM-P0006	part 1821-D	castor assembly	$1,367	18	400	dual sourced	last-time-buy notice 12 months
SUM-P0007	part 6759-T	drive unit	$1,238	13	400	single source	no EOL commitment
SUM-P0008	part 8507-W	battery module	$1,809	18	400	single source	no EOL commitment
SUM-P0009	part 1860-G	battery module	$2,336	12	250	single source	no EOL commitment
SUM-P0010	part 9517-U	gearbox	$607	21	550	single source	EOL notice 6 months
SUM-P0011	part 4687-L	harness	$248	16	300	single source	last-time-buy notice 12 months
SUM-P0012	part 3226-P	castor assembly	$692	12	100	single source	no EOL commitment
SUM-P0013	part 1531-K	harness	$2,426	5	150	dual sourced	EOL notice 6 months
SUM-P0014	part 5149-V	controller board	$2,094	10	600	dual sourced	EOL notice 6 months
SUM-P0015	part 6804-J	battery module	$622	19	150	dual sourced	last-time-buy notice 12 months
SUM-P0016	part 3294-D	castor assembly	$502	20	50	dual sourced	no EOL commitment
SUM-P0017	part 8008-V	castor assembly	$969	22	300	single source	no EOL commitment
SUM-P0018	part 7383-O	controller board	$139	21	250	dual sourced	no EOL commitment
SUM-P0019	part 9873-U	battery module	$1,529	6	500	dual sourced	last-time-buy notice 12 months
SUM-P0020	part 1919-Z	castor assembly	$2,148	10	150	qualification in progress	last-time-buy notice 12 months
SUM-P0021	part 9858-K	optical sensor	$1,859	10	550	qualification in progress	last-time-buy notice 12

Summit price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
SUM-P0022	part 9790-I	drive unit	$2,154	5	350	dual sourced	EOL notice 6 months
SUM-P0023	part 6123-X	gearbox	$2,339	19	400	dual sourced	no EOL commitment
SUM-P0024	part 6758-X	optical sensor	$1,429	18	200	dual sourced	last-time-buy notice 12 months
SUM-P0025	part 3621-G	harness	$2,145	18	250	single source	EOL notice 6 months
SUM-P0026	part 3922-H	controller board	$2,310	15	450	single source	last-time-buy notice 12 months
SUM-P0027	part 9983-I	battery module	$834	7	300	qualification in progress	EOL notice 6 months
SUM-P0028	part 5085-W	battery module	$517	7	600	dual sourced	EOL notice 6 months
SUM-P0029	part 9544-V	controller board	$2,319	19	350	dual sourced	last-time-buy notice 12 months
SUM-P0030	part 9879-W	gearbox	$1,604	10	50	dual sourced	no EOL commitment
SUM-P0031	part 3027-D	optical sensor	$547	6	450	single source	EOL notice 6 months
SUM-P0032	part 1108-O	gearbox	$949	20	350	qualification in progress	no EOL commitment
SUM-P0033	part 7539-Z	controller board	$1,051	23	50	dual sourced	last-time-buy notice 12 months
SUM-P0034	part 7328-I	encoder	$2,134	17	300	single source	no EOL commitment
SUM-P0035	part 8201-J	harness	$2,383	23	500	single source	EOL notice 6 months
SUM-P0036	part 9470-E	drive unit	$267	4	100	single source	EOL notice 6 months
SUM-P0037	part 8385-T	harness	$1,582	5	100	dual sourced	last-time-buy notice 12 months
SUM-P0038	part 6944-T	battery module	$1,981	11	250	dual sourced	last-time-buy notice 12 months
SUM-P0039	part 7500-L	drive unit	$1,720	7	200	qualification in progress	no EOL commitment
SUM-P0040	part 8553-L	encoder	$1,589	4	350	dual sourced	EOL notice 6 months
SUM-P0041	part 2870-J	gearbox	$1,199	13	600	single source	last-time-buy notice 12 months
SUM-P0042	part 2441-G	harness	$2,420	6	600	qualification in progress	last-time-buy notice 12 months
SUM-P0043	part 1291-U	castor assembly	$1,237	4	450	single source	EOL notice 6 months
SUM-P0044	part 2646-W	controller board	$2,140	22	100	qualification in progress	EOL notice 6 months
SUM-P0045	part 8531-K	gearbox	$1,343	7	150	dual sourced	EOL notice 6 months
SUM-P0046	part 5375-H	controller board	$2,213	4	100	qualification in progress	EOL notice 6 months
SUM-P0047	part 6196-Y	gearbox	$2,378	4	300	dual sourced	last-time-buy notice 12 months
SUM-P0048	part 6709-V	encoder	$452	24	400	single source	EOL notice 6 months
SUM-P0049	part 6006-O	battery module	$2,118	14	400	qualification in progress	last-time-buy notice 12 months
SUM-P0050	part 4670-R	gearbox	$1,278	8	400	dual sourced	last-time-buy notice 12

Summit price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
SUM-P0051	part 2668-Y	harness	$484	6	100	dual sourced	EOL notice 6 months
SUM-P0052	part 9114-G	gearbox	$233	23	50	dual sourced	EOL notice 6 months
SUM-P0053	part 2273-P	optical sensor	$162	8	350	qualification in progress	last-time-buy notice 12 months
SUM-P0054	part 4340-T	battery module	$731	24	300	dual sourced	last-time-buy notice 12 months
SUM-P0055	part 7916-E	encoder	$1,997	24	450	single source	no EOL commitment
SUM-P0056	part 1681-Z	harness	$1,731	22	450	single source	no EOL commitment
SUM-P0057	part 5087-N	optical sensor	$724	17	450	qualification in progress	EOL notice 6 months
SUM-P0058	part 7971-J	optical sensor	$40	24	450	qualification in progress	EOL notice 6 months
SUM-P0059	part 3176-A	optical sensor	$229	12	150	qualification in progress	no EOL commitment
SUM-P0060	part 2484-L	gearbox	$2,021	8	450	qualification in progress	no EOL commitment
SUM-P0061	part 3745-D	harness	$2,315	8	50	dual sourced	EOL notice 6 months
SUM-P0062	part 6195-X	encoder	$622	4	150	dual sourced	no EOL commitment
SUM-P0063	part 8364-O	castor assembly	$405	23	450	single source	last-time-buy notice 12 months
SUM-P0064	part 3926-M	battery module	$1,438	10	200	dual sourced	no EOL commitment
SUM-P0065	part 5099-W	optical sensor	$1,356	23	350	qualification in progress	no EOL commitment
SUM-P0066	part 8428-G	castor assembly	$2,134	25	100	qualification in progress	EOL notice 6 months
SUM-P0067	part 5045-M	castor assembly	$1,473	23	200	dual sourced	EOL notice 6 months
SUM-P0068	part 7357-F	battery module	$2,048	17	200	qualification in progress	no EOL commitment
SUM-P0069	part 1149-V	castor assembly	$1,932	14	400	qualification in progress	EOL notice 6 months
SUM-P0070	part 6024-J	encoder	$2,046	20	50	dual sourced	EOL notice 6 months
SUM-P0071	part 7536-E	battery module	$601	21	500	qualification in progress	EOL notice 6 months
SUM-P0072	part 7837-C	battery module	$84	23	400	single source	EOL notice 6 months
SUM-P0073	part 6393-V	castor assembly	$1,553	10	500	dual sourced	last-time-buy notice 12 months
SUM-P0074	part 3373-S	battery module	$165	13	600	single source	no EOL commitment
SUM-P0075	part 9120-F	castor assembly	$869	17	150	single source	no EOL commitment
SUM-P0076	part 7646-X	controller board	$2,273	18	450	qualification in progress	EOL notice 6 months
SUM-P0077	part 1571-L	controller board	$1,295	24	600	qualification in progress	EOL notice 6 months
SUM-P0078	part 8990-F	controller board	$1,970	14	400	qualification in progress	no EOL commitment
SUM-P0079	part 6382-C	controller board	$2,129	24	150	dual sourced	no EOL commitment
SUM-P0080	part 4587-F	battery module	$1,133	8	200	qualification in progress	EOL notice 6 months
SUM-P0081	part 4541-B	optical sensor	$111	9	400	dual sourced	EOL notice 6 months
SUM-P0082	part 1582-Z	harness	$1,089	13	50	single source	last-time-buy notice 12

Summit price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
SUM-P0083	part 4471-F	optical sensor	$961	5	600	dual sourced	EOL notice 6 months
SUM-P0084	part 4548-P	gearbox	$912	6	500	qualification in progress	no EOL commitment
SUM-P0085	part 2373-J	optical sensor	$960	16	200	qualification in progress	no EOL commitment
SUM-P0086	part 1193-D	controller board	$1,901	12	200	dual sourced	last-time-buy notice 12 months
SUM-P0087	part 9468-R	battery module	$877	18	50	dual sourced	EOL notice 6 months
SUM-P0088	part 9844-O	harness	$911	4	600	qualification in progress	no EOL commitment
SUM-P0089	part 6289-F	battery module	$350	5	400	dual sourced	EOL notice 6 months
SUM-P0090	part 8603-M	controller board	$55	25	500	single source	no EOL commitment
SUM-P0091	part 7711-O	castor assembly	$235	22	100	dual sourced	last-time-buy notice 12 months
SUM-P0092	part 4539-D	optical sensor	$217	14	200	dual sourced	last-time-buy notice 12 months

9. Term, termination and transition

Except as Article 12 (Intellectual Property) permits, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On the operative wording, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Summit's 1 site, since a battery packs operator administers the Component Supply Agreement where the units work. Nothing in the Summit negotiation history qualifies Article 19 (Confidentiality), and a reviewer should not read the pre-signature drafts as doing so.

Summit pays the fees under Exhibit A in consideration of the Provider's undertaking that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On timing, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 1 site, Summit applies the Component Supply Agreement at the point of delivery, as battery packs practice requires. Notices under Article 12 (Intellectual Property) go to the contracting entity named in the recital and not to any Summit affiliate that may operate a site.

Where Article 17 (Transition Assistance) applies, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By way of qualification, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Component Supply Agreement reaches each of Summit's 1 site separately, which is how a battery packs operator in Nevada administers it. Administration of this obligation for Summit sits with the account team rather than with central contracts, and Article 6 (Fees and Payment) is where it is evidenced.

For the purposes of the Component Supply Agreement, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In application, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Summit runs 1 site from Nevada in battery packs, so the Component Supply Agreement is administered locally and this clause is applied per site. Administration of this obligation for Summit sits with the account team rather than with central contracts, and Article 16 (Term and Termination) is where it is evidenced.

10. Assignment, notices and general

Summit may require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In substance, where the parties disagree on whether the

standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Summit's 1 site, since a battery packs operator administers the Component Supply Agreement where the units work. Notices under Article 6 (Fees and Payment) go to the contracting entity named in the recital and not to any Summit affiliate that may operate a site.

On a proper construction of Exhibit A, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Negotiated position: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 1 site in Nevada means Summit applies the Component Supply Agreement through its regional operations team rather than through head office. Summit has taken the point up once since signature; the correspondence is filed against Article 14 (Indemnities) and did not result in an amendment.

Read with Exhibit A, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Per the amendment history, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Component Supply Agreement reaches each of Summit's 1 site separately, which is how a battery packs operator in Nevada administers it. Summit has taken the point up once since signature; the correspondence is filed against Article 9 (Customer Obligations) and did not result in an amendment.

Summit bears the risk that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Materially, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Running 1 site in battery packs, Summit takes this obligation at site level rather than centrally under the Component Supply Agreement. Administration of this obligation for Summit sits with the account team rather than with central contracts, and Article 9 (Customer Obligations) is where it is evidenced.